

#	Case Name	Tentative
	Personnel, Inc. 2026-01562151	California Secretary of State is GRANTED. (Corp. Code §1702., subd. (a).) Plaintiff Perfect 85 Degrees C, Inc.'s Motion for Order Permitting Service of the Summons and Complaint on Defendant Legacy & Co. by Delivery to the California Secretary of State is GRANTED. (Corp. Code §1702, subd. (a).) Corporations Code section 1702 permits the court to authorize delivery of process to the Secretary of State when the plaintiff has shown that process could not be served with reasonable diligence on the corporation's designated agent, or on the corporation by any other authorized method. (Corps. Code § 1702, subd. (a).) <u>Plaintiff has Shown that Defendant Virtuous Personnel, Inc.'s Designated Agent for Service of Process Cannot, with Reasonable Diligence, be Found at the Designated Address and the Corporation Cannot, with Reasonable Diligence be Served by any Other Authorized Method</u> The Court finds Plaintiff has established reasonable diligence in attempting to serve process on Defendant Virtuous Personnel, Inc.'s designated agent for service of process, Wendy Laguna, at the address designated: 1155 S. Milliken Ave, Ste J, Ontario, Ca 91761. However, the process server was informed by the current occupant that Defendant Virtuous was no longer the tenant at that address. (ROA 13 [Blank Decl. at ¶ 5]; see also <i>Id.</i> at Ex. B [Declaration of Due Diligence].) Despite several more efforts to locate a potential address where defendant's agent could be served, Plaintiff was not able to effect service at any of these locations. (Blank Decl. at ¶¶ 6-7.) Absent a physical address, the Court finds Plaintiff is not able to effect service of process by any of the available methods on Defendant Virtuous Personnel, Inc. Accordingly, the Court orders service to be made upon Defendant Virtuous Personnel, Inc. by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for defendant, together with a copy of the order authorizing such service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State. (Corps. Code, § 1702, subd. (a); Code Civ. Proc., § 416.10, subd. (d).) <u>Plaintiff has Shown that Defendant Legacy & Co.'s Designated Agent for Service of Process Cannot, with</u>

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		<u>Reasonable Diligence, be Found at the Designated Address and the Corporation Cannot, with Reasonable Diligence be Served by any Other Authorized Method</u> The Court finds Plaintiff has established reasonable diligence in attempting to serve process on Defendant Legacy & Co.'s designated agent for service of process, Jose R. Rojas Jr., at the address designated: 3200 E. Guasti Rd., Ste 100, Ontario, CA 91760. However, the process server was unable to complete service at this address because it was a shared office space and the receptionist was not authorized to accept service on any tenant's behalf. The process server was unable to serve Defendant Legacy & Co. at this address despite several attempts on different days at different times. (ROA 17 [Blank Decl. at ¶ 5]; see also <i>Id.</i> at Ex. B [Declaration of Due Diligence].) Plaintiff was unable to locate an address for Defendant Legacy & Co., or any of its officers, other than the address identified above. Absent a physical address, the Court finds Plaintiff is not able to effect service of process by any of the available methods on Defendant Legacy & Co. Accordingly, the Court orders service to be made upon Defendant Legacy & Co. by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for defendant, together with a copy of the order authorizing such service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State. (Corps. Code, § 1702, subd. (a); Code Civ. Proc., § 416.10, subd. (d).) The case management conference is continued to March 15, 2027 at 9:00 a.m. in Department C28. Plaintiff shall provide notice.
59.	The People of the State of California v. Experian Data Corp. 2019-014047183	Defendant Experian Data Corp.'s unopposed Motion to Seal is GRANTED. (Cal. Rules of Court, Rule 2.551, subd. (b).) The Court finds that Moving Party has made a sufficient factual showing under Cal. Rules of Court, Rule 2.550, subd. (d) to justify sealing: (1) Moving Party has shown that the records it seeks to seal consist of, or directly reference, communications between Defendant and various States' Attorneys General regarding the negotiation and terms of a tolling agreement and confidential

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		documents reflecting Defendant's data sharing methods and policies. (2) Moving Party has shown an overriding interest that supports sealing of records (see <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178, 1222, fn. 46 [recognizing inter alia an overriding interest in protection of trade secrets and protection of information within the attorney-client privilege]; <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1286 [recognizing that confidential and sensitive business and financial information is ordinarily a matter appropriate for sealing].) Furthermore, the Court finds a compelling reason to maintain the privacy of these matters because the subject matter involves information that could be utilized by malicious actors to augment identify theft techniques. (3) Publication of these records would prejudice Moving Party and the public in general by publicly disclosing sensitive information regarding the handling of consumer data and the strategies undertaken by various law enforcement bodies to combat identity theft. (4) Moving Party proposed a narrowly tailored means to protect the overriding interest by limiting the sealing only to those matters that are directly related to the overriding interest. (5) Moving Party has shown there is no less restrictive means of protecting the overriding interests identified above. The clerk is directed to file the unredacted versions of: the Declaration of Ryan Ball in Support of Defendant Experian Data Corp.'s Reply In Support of Motion for Summary Judgment (ROA 1923) and the Reply Memorandum (1922) UNDER SEAL. The redacted versions of the Declaration (ROA 1908) and Memorandum (ROA 1902) shall be accessible on the public record of this proceeding. Moving party shall provide notice of this ruling.
60.	Perez v. Jaguar Land Rover North America, LLC	Plaintiffs Shontel Perez and Roy Perez' Motion for Attorney fees is GRANTED in part. Defendants Jaguar Land Rover North America, LLC and LAD Mission Viejo-JLR dba Jaguar Land Rover Mission Viejo shall pay <u>\$58,532.50</u> in reasonable attorney fees and <u>\$4,584.41</u> in costs and expenses to Plaintiff. (See Code Civ. Proc.,

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2024-01374602		§1033.5, subd. (a)(10)(B) [statutory attorney fees]; Civ. Code §1794, subd. (d) [Song-Beverly attorney fees]; <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095-1096 [lodestar; trial court’s discretion]; <i>Reynolds v. Ford Motor Company</i> (2020) 47 Cal.App.5th 1105, 1112 [same]; Melton Decl. ¶¶ 10-13vv [description of services performed]; ¶¶20-21 [justification for hourly rates sought], ¶21 [timekeeping procedures]; and Ex. 20 [timekeeping records].) The attorney fee award consists of the reasonably expended hours of work at the reasonable hourly rates sought by the following timekeepers: <table><tr><th>Timekeeper</th><th>Role</th><th>Rate</th><th>Hours</th><th>Total</th></tr><tr><td>Dana I. Castruita, Esq.</td><td>Former Associate</td><td>\$400</td><td>1.5</td><td>\$600</td></tr><tr><td>Luis Aguirre, Esq.</td><td>Former Associate</td><td>\$475</td><td>0</td><td>\$0</td></tr><tr><td>Kimya Assadkhan</td><td>Former Associate</td><td>\$250</td><td>1.5</td><td>\$375</td></tr><tr><td>Matthew T. Goethals, Esq.</td><td>Attorney</td><td>\$500</td><td>0.6</td><td>\$300</td></tr><tr><td>Shawna M. Melton, Esq.</td><td>Partner</td><td>\$650</td><td>75</td><td>\$48,750</td></tr><tr><td>David Womack</td><td>Paralegal</td><td>\$200</td><td>13.4</td><td>\$2,680</td></tr><tr><td>Rebecca Goethals</td><td>Paralegal</td><td>\$225</td><td>25.9</td><td>\$5,827.50</td></tr><tr><td></td><td></td><td></td><td>92.9</td><td>\$58,532.50</td></tr></table> Plaintiffs have adequately established a basis for the reasonableness of the hourly fees requested for the attorney timekeepers by providing evidence of each timekeeper’s experience and qualifications and reference to rates charged by other lemon law attorneys in the Orange County market. Plaintiffs have sufficiently established that the requested hourly rates of counsel are reasonable and commensurate with what other similarly tenured and experienced attorneys could charge in the Orange County market, subject to the court’s further qualification discussed below. The court generally credits the accuracy of Moving Parties’s time records. (See <i>City of Colton v. Singletary</i> (2012) 206	Timekeeper	Role	Rate	Hours	Total	Dana I. Castruita, Esq.	Former Associate	\$400	1.5	\$600	Luis Aguirre, Esq.	Former Associate	\$475	0	\$0	Kimya Assadkhan	Former Associate	\$250	1.5	\$375	Matthew T. Goethals, Esq.	Attorney	\$500	0.6	\$300	Shawna M. Melton, Esq.	Partner	\$650	75	\$48,750	David Womack	Paralegal	\$200	13.4	\$2,680	Rebecca Goethals	Paralegal	\$225	25.9	\$5,827.50				92.9	\$58,532.50
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